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2026:PHHC:087090



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33262-2026
Decided On: 09.06.2026**

JASPINDER KAUR**....PETITIONER(S)****VERSUS****STATE OF PUNJAB****....RESPONDENT(S)****CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL****Present:** Mr. Rajeev K. Kapila, Advocate for the petitioner**SANDEEP MOUDGIL, J. (ORAL)****1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.0070 dated 02.05.2026 under Section 115(2) (corresponding to Section 323 IPC), 118(1) (corresponding to Section 324 IPC), 351(2) (corresponding to Section 506 IPC), 190 (corresponding to Section 149 IPC), 191(3) of BNS, 2023 (corresponding to Section 148 IPC) registered at Police Station Shri Hargobindpur, Police District Batala, District Gurdaspur and offences under Section 118(2) (corresponding to Section 326 IPC), 109 (corresponding to Section 307 IPC) BNS of 2023 added later on.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, as a cross-version has been set up by

the complainant, who is already facing a civil suit with regard to the disputed land. It is further submitted that the parties have also been restrained by the learned Trial Court in the said proceedings.

It is contended that, with an intent to illegally grab the land belonging to the petitioner and his family, the complainant is harassing the petitioner and his family by falsely implicating them in the present criminal case. The petitioner further submits that he is ready and willing to join the investigation and cooperate fully with the same.

Notice of motion.

On behalf of the State/Complainant

On the asking of the Court, Mr. Yatin Bunger, AAG, Punjab, for the respondent–State, and Mr. Manoj Singh Rai, Advocate for the complainant, accept notice and strongly oppose the prayer made by learned counsel for the petitioner. It is submitted that the petitioner had inflicted a datar blow on the left arm of Baldev Singh, and the said injury has been opined to have been caused by a sharp-edged weapon and has been declared grievous in nature.

3. Analysis

Having heard learned counsel for the parties and perused the record, this Court finds that the dispute between the parties arises out of a property dispute, which is also stated to be the subject matter of civil proceedings, wherein restraint orders have already been passed by the learned Trial Court.

It further appears that there is a cross-version between the parties and the role attributed to the petitioner is of a single injury by way of a sharp-edged weapon, which has been declared grievous in nature. However, the matter is still at the stage of investigation, and the petitioner has undertaken to

join and cooperate with the same as has been undertaken in para 14 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period

of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*